

Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Jharkhand Amendment) Act, 2017

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State of Jharkhand - Act

Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Jharkhand Amendment) Act, 2017

JHARKHAND

India

Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Jharkhand Amendment) Act, 2017

Act 07 of 2018

Published on 29 June 2018

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Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Jharkhand Amendment) Act, 2017

(Jharkhand Act

No 07 of 2018

)

jh296

[Dated 29.6.2018.]

An Act to Amend the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 in its Application to the State of Jharkhand.

Be it enacted by the Legislature of the State of Jharkhand in the sixty eighth year of the Republic of India as follows-

1.

Short title and Commencement.

(1)

This Act may be called the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Jharkhand Amendment) Act, 2017.

(2)

The Act shall be deemed to have come into effect on 1st January, 2014.

(3)

The provisions of this Amendment Act shall have effect notwithstanding anything contained in any Law or judgement or Order of any Court or authority.

2.

Amendment to Section 2 Central Act 30 of 2013.

- In the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (hereinafter referred to as the Principal Act), in Section 2, in sub-section (2) after the second proviso, the following proviso shall be added, namely:-

"Provided also that the acquisition of land for the projects listed in Section 10A and the purpose specified therein shall be exempted from the provisions of the first proviso to this sub-section."

3.

Insertion of new Section 10A.

- In the Principal Act, after Chapter-III, the following new Chapter-IIIA shall be inserted:-

Chapter-IIIA Provisions of Chapter-II and III not to apply to certain projects

10A.

Power of the State Government to exempt certain project. - The State Government may, in the public interest by notification in the Official Gazette, exempt any of the following project from the application of the provision of Chapter-II and Chapter-III of this Act, namely:-

Government Infrastructure projects including Schools, Colleges, Universities, Hospitals, Panchayat Building, Anganbadi Centres, Rail, Road, Waterways, electrification, irrigation, housing for the economically weaker section, water supply, pipelines, Transmission and other Government Building for undertaking such projects advise of Gram Sabha/Local Authority shall also be taken.

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